

25SMCV06530 25SMCV06530

County: los-angeles

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Case Number: 25SMCV06530 Hearing Date: September 15, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

HNM PROPERTY MANAGEMENT, INC.,

Plaintiff,

v.

MICHAEL ANTHONY CLINTON, et al.,

Defendants.

Case No.: 25SMCV06530

Hearing Date: September 15, 2026

[TENTATIVE] order RE:

PLAINTIFF'S motion for

terminating sanctions OR IN THE

ALTERNATIVE for issue and

evidentiary sanctions and for

monetary sanctions

BACKGROUND

This is a fraud case. Plaintiff HNM Property Management, Inc. alleges that Defendant Michael Anthony Clinton solicited funds from its CEO for various deals involving real property located in California, Mississippi and Alabama. One of the properties was bought through Clinton's company, Defendant Micro-Boutique Venice LLC. The various debts were later assigned to HNM. A portion of the debts was guaranteed by Defendant Tiffany Clinton.

Plaintiff claims that Clinton never intended, and had no ability to repay, the funds. Further, as to one of the properties, the mortgagee initiated foreclosure proceedings, and Clinton represented to HNM that he would retain counsel to protect HNM's interest, but he failed to do so.

Plaintiff served four sets of discovery on Defendants: special interrogatories ("SROGs"), form interrogatories ("FROGs"), requests for production ("RFPs"), and requests for admissions ("RFAs"). Defendants failed to serve initial verified responses by the statutory deadline, and Plaintiff filed three motions to compel and one motion to deem the RFAs admitted. Defendants did not oppose any of the motions. The Court granted all four motions on July 1, 2026, and sanctioned Defendants and their counsel jointly and severally, in the amount of \$5,367.00.

This hearing is on Plaintiff's motion for terminating sanctions. Plaintiff represents that Defendants have still not served their responses to the discovery requests, and they have also failed to pay the sanctions ordered by the Court. Plaintiff argues that terminating sanctions are warranted because less severe sanctions have not induced Defendants to comply with their discovery obligations. Plaintiff also seeks sanctions in the amount of \$13,900 plus \$83 in costs.

LEGAL STANDARD

California Code of Civil Procedure section 2023.030 permits courts to impose sanctions against anyone engaging in conduct that constitutes a misuse of the discovery process. Section 2023.010 provides a non-exhaustive list of conduct that is considered misuse of the discovery process, including failing to respond or to submit to an authorized method of discovery, providing evasive answers, and asserting unmeritorious objections. (Cal. Civ. Proc. § 2023.010(d), (g).)

Further, Code of Civil Procedure section 2023.030 subdivision (d) gives courts the authority to issue a terminating sanction by one of four following orders: (1) an order striking out the pleadings or parts of the pleadings of any party engaging in misuse of the discovery process; (2) an order staying further proceedings until an order for discovery is obeyed; (3) an order dismissing the action, or any part of the action, of that party; or (4) an order rendering a default judgment against that party.

In determining whether to impose terminating sanctions, trial courts must consider the totality of the circumstances, including whether the actions were willful; the detriment to the propounding party; and the number of informal and formal attempts to obtain the discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.)

The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293; *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 928–929.) The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should "attempt[] to tailor the sanction to the harm caused by the withheld discovery." (*Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns* (1992) 7 Cal.App.4th 27, 36.)

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. "Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Laguna Auto Body v. Farmers Ins. Exchange, 231 Cal.App.3d at p. 487.) If a lesser sanction fails to curb misuse, a greater sanction is warranted; continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992.)

DISCUSSION

As a threshold matter, the Court considers the timeliness of Defendant's opposition. The deadline to file an opposition is 9 court days from the hearing date or September 4, 2026. (Cal. Civ. Proc. Code § 1005(b) and Cal. Rules of Court, Rule 3.1300.) Defendant filed its opposition on September 11, 2026. Counsel does not provide any explanation for filing the Opposition late. While counsel has a pending motion to withdraw, it did not impede Counsel from filing the untimely opposition so it should not have prevented counsel from filing a timely opposition. The Court declines to consider the late opposition.

The Court now turns to the merits of the motion. Because terminating sanctions are the most "drastic" penalty, they are typically a "last resort" to be "used sparingly". (Siry Investment, L.P. v. Farkhondehpour (2020) 45 Cal.App.5th 1098, 1118.) However, they may still be appropriate "as a first measure" in "extreme cases" where a litigant violates a court order and "persists in the outright refusal to comply with [its] discovery obligations." (Id.) This is such a case.

Plaintiff served four sets of discovery, and responses were due in May 2026, nearly four months ago. Defendants did not respond by July 21, 2026, the deadline imposed in the Court's July 1, 2026 order. Monetary sanctions have also failed to motivate Defendants to respond, and indeed, Defendants have failed to even pay the sanctions. Accordingly, the Court concludes that terminating sanctions are warranted. The Court strikes Defendants' answer and enters default against them.

As to Plaintiff's request for monetary sanctions, the Court concludes that its entry of default against Defendants is a sufficient remedy for Defendants' failures to participate in the discovery process. It is a waste of the Court's time and resources to evaluate a sanctions request when Defendants have not paid prior sanctions, and they are subject to the ultimate sanction of termination.

CONCLUSION

Based on the foregoing, the Court GRANTS IN PART and DENIES IN PART Plaintiff's motion for terminating sanctions. The Court strikes Defendants' answer, enters default against Defendants and sets a hearing on October 30, 2026 to consider Plaintiff's request for entry of default judgment. Plaintiff must file a default package within 10 days of the hearing.

IT IS SO ORDERED.

DATED: September 15, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court